

LINE

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**JP MORGAN CHASE BANK v. PANIAGUA
CL24-09235**

Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted

TENTATIVE RULING

The Plaintiff's unopposed Motion for Order that Matters in Request for Admission of Truth of Fact be Deemed Admitted is GRANTED.

LINE

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**JULIO MEJIA RODRIGUEZ v. GREEN VALLEY PAINTING, INC. and IAN LILLIBRIDGE
Case No. CU25-03192**

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

Plaintiff JULIO MEJIA RODRIGUEZ moves for preliminary approval of the settlement reached with Defendants GREEN VALLEY PAINTING, INC. and IAN LILLIBRIDGE in Plaintiff's class action and Private Attorneys General Act ("PAGA") suit against them for labor law violations.

Preliminary Review of Class Action Settlement. Settlements of class actions are governed by California Rule of Court rule 3.769. Subsection (c) requires a preliminary approval by the court of the settlement after the settlement agreement and proposed class notice have been filed with the court and a proposed order has been lodged with the court. The settlement agreement and proposed class notice were filed with this motion. (Declaration of Young Ryu in Support of Motion ("Ryu Dec.") at ¶ 10, Exhibit 1; Notice of Errata filed 5/13/2026.) There is a proposed order granting preliminary approval formally and separately lodged in the case file.

Here, the settlement occurred subsequent to mediation with a neutral mediator. (Ryu Dec. at ¶¶ 9-10.) The involvement of a neutral mediator is normally a factor to be given considerable weight in maintaining the presumption that the settlement is the product of arms'-length negotiation. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129.) In this matter, however, the settlement was effected months after the mediation, minimizing the weight afforded to the presence of a neutral mediator earlier in the process. Nonetheless, nothing in the terms of settlement suggests preferential treatment or conflicts of interest among the proposed class members. The class members appear to be fairly treated according to their harms suffered.